

resentment. Instead, you just want prospective spouses to know what the rules are. Nothing personal about it. You want policies that put everyone on an even playing field. You want to be able to say something like: “It’s nothing against so-and-so. Those are just the rules. We decided on them together long ago. Everyone follows them.”

So what kind of policies are we talking about?

The first is not a formal policy. But it is important. Family members should understand that when they marry, they bring someone into the family. Whom they marry is an expression of the family identity. Will the person they marry “fit” into the family culture? Obviously, this can be a sensitive subject. But you might at the very least ask your son or daughter to consider this if it seems like they haven’t done so already.

Is a “Prenup” Really Necessary?

In terms of more formal policy, you need something that addresses wealth protection in the context of the 50-50 potential for divorce. At least, there should be a policy that asks the family member getting married to consider the wealth protection options available. That does not necessarily mean a prenuptial agreement. This kind of thing seems a bit anti-romantic. But under certain circumstances, it is recommended. It depends on the financial situation of the person getting married and the legal structures the family is using to hold wealth.

We’re not lawyers, but as we understand it, the beneficiary’s assets in a perpetual trust, such as the one my family uses, would not be considered marital property. But income or profits derived from money distributed from the trust during the marriage would be considered marital property.

If there has been a distribution before a family member gets married, there’s greater potential for that money—and especially the income derived from that money—to be considered marital property.